BETTERBRANDS MINING (PRIVATE) LIMITED
versus
SONNY MANYANDE

HIGH COURT OF Zimbabwe
MUZENDA J
MUTARE, 9 February 2026

**URGENT CHAMBER APPLICATION**

Mr *C Maunga (Jr)*, for the applicant
Respondent in person

MUZENDA J:

1. The applicant approached this court looking for the following interim relief:

"INTERIM RELIEF GRANTED

Pending determination of this matter on the return date Applicant is granted the following relief:

*a) Pending the return date, the respondent, his agents, proxies or assignees be and is hereby interdicted from visiting or entering the site of applicant's operations at the water tanks in Penhalonga, Mutasa without applicant's authority."*

Respondent is opposing the application.

2.0. B**ackground Facts**

2.1. The applicant private company holds a tribute with Redwing Mining Company (Private) Limited and mines gold, treats it, mills it and supplies Fidelity Gold Refinery. After signing the tribute applicant realized that a site earmarked for the establishment of operations is in close proximity to water tanks belonging to Mutasa Rural District Council. All stake-holders then unanimously agreed that the water tanks had to be moved to a chosen site at the expense of the applicant but with the approval of the local authority and Environmental Management Authority.

2.2 After all logistical steps were fulfilled, applicant on 2 February 2026 decided to move into action by mobilizing equipment and personnel, clear the roads to access the site and commence erection of the water tanks. On the same date respondent also moved onto the site with a Magistrate's Court order issued in 2020 containing a paragraph ordering Mutasa Rural District Council to cease entering into illicit dealings with Redwing Mine and demanded that applicant vacate the site forthwith or else it was in contempt of court. Applicant's agent was told the court order by the Magistrate effectively barred everyone else on earth not to undertake any works on the area in question. Faced by this development applicant decided to come to court.

2.3. The respondent in opposing the application raised preliminary points to the effect that the matter had already been decided and finalized by the Magistrate Court. He thus raised a defence of *res judicata*. He added that Redwing Mining Company cannot avoid a court order by choosing to hide behind applicant. To respondent the tribute held by applicant did not arm applicant to over-ride the magistrate's order.

2.4. The second point *in limine* was that applicant lacked *locus standi in judicio* to bring the application. He also added that this court has no jurisdiction, the appropriate court is the Provincial Magistrate.

2.5 On merits respondent cited sections of the *Constitution* guaranteeing him rights to a clean environmental and safety from people like applicant who use explosives and chemicals near and on his private land. He criticized documents written by Mutasa Rural District Council, its resolutions relating to the water tanks and alleged fraud on everyone involved including letters and inspection from EMA. Respondent was advised by his local councilor for Penhalonga that the council was not consulted by applicant about the moving of water tanks. He denied allegations that he demanded USD50 000 from applicant's agent in order to leave applicant's site project. Respondent also submitted that police did not assist applicant because the police respected the court order. What respondent wanted was to project a piece of land which had a closure of an option to purchase it and that gave him real rights to protect it.

2.6. The applicant in responding to preliminary points, submitted that the objections were ill taken. On the aspect of *res judicata*, applicant submitted that a mere looking at the heading

of the order manifestly reflects that the order, related to respondent and other third parties. Applicant added further by submitting that the requisites of a *res judicata* were not met. The order by the Magistrate was also impugned by the applicant to the effect that a Magistrates Court lacks jurisdiction on issues relating to mineral rights and directed this court to the case of *Dube* v *Mapepa Syndicate* 2009 (1) ZLR 24 and hence the order sought to be relied upon by the respondent was completely incompetent. In any case applicant further submitted, the order does not relate to the applicant. On the issue of *locus standi* the applicant submitted that applicant owns a tribute that allows it to operate and that in the best interests of the applicant and the public at large the tanks had to be established at a safer place. Applicant prayed therefore that the point *in limine* be dismissed.

2.7. On the merits, applicant largely abided by papers filed of record and contented that applicant has successfully proved all the legal requirements of an interdict on a balance of probabilities, and it is seeking costs against the respondent.

3.0. **The Law**

3.1. In the matter of *Chawasarira Transport (Pvt) Ltd* v *Reserve Bank of Zimbabwe* 2009 (2) ZLR 112 (H) at 113 B-C it was held per BHUNU J (as he then was):

*"Held further, that when res judicata is pleaded by way of estoppel it amounts to an allegation that the whole of the legal rights and obligations of the parties are concluded by the earlier judgment and that the plaintiff is estopped by the findings of fact involved in that earlier judgment. Here the Bank was not a party to the criminal proceedings in the Magistrate's court, the parties to that case were the state and the applicant."*

3.2. In the matter of *Charuma Blasting & Earthmoving Services (Pvt) Ltd* v *Njainjai & Ors* 2000 (1) ZLR 85 (S) at 86B, it was held per SANDURA JA*:*

"*Held further, that the party applying for a temporary interdict must establish a prima facie right even though open to some doubt, a well-grounded apprehension of injury and the absence of some other adequate and ordinary remedy. Regarding the requirement of injury, the court must weigh the prejudice to the applicant, the interdict is not granted against the prejudice to the respondent if it is granted. The stronger the applicant's prospects of success, the less his need to rely on prejudice to himself. Where a clear right is established which is not open to doubt, it is not necessary for the applicant to prove that the failure to grant the interdict will lead to irreparable injury to himself...*"

4.0. **Applying the law to the facts**

4.1. the applicant company brought an application for an interdict against the respondent complaining about respondent's interference with applicant's projects both on the old site

of water tanks as well as the new site. Respondent raises a defence of *res judicata* citing a Magistrates Cout ruling where it gave an order binding other parties notably Redwing Mining Company and Mutasa Rural District Council. Applicant was not a party to those proceedings in 2020 and legally that Magistrates Court's order cannot bind the applicant as crisply noted in the case of *Chawasarira Transport P/L* cited (*supra*).

4.2. The arguments raised by the respondent including cases cited in his submission do not hold water. A case law authority should be based on salient facts which form a firm foundation to be appropriately anchored by jurisprudence not for purposes of spicing the case where the spice does not add to the value of the taste. Voluminous citations of the case law authorities do not persuade the court especially where the facts are totally distinct. The cases cited by the respondent amount simply to red-herrings and did not assist it to make a value judgement. Respondent invited the court to conclude that it had no jurisdiction to deal with the matter and that it must be properly heard by the Provincial Magistrate sitting at Nyanga. Respondent's preliminary points are all ill-taken and ought to be dismissed.

4.3. Respondent on the merits did not dispute that Redwing Mining Company holds a tribute with the applicant. Respondent does not contend that applicant was allowed by Mutasa Rural District Council and Environmental Management Authority to translocate water tanks from the old site to the new site and all that has been ascended to by the responsible authorities. The old site does not belong to the respondent, the same applies to the new site. The subject land is state land which falls under the auspices of the local authority. Applicant's intended project for the transpiration is for the noble idea of ensuring clean water for people like the respondent and community at large without contaminating the water system. Respondent claims that his life, his family and other occupiers are going to be affected by blasting to be performed by the applicant on the sites. This fear is only but anticipated, it is not based on any tangible fact. If applicant is not granted the interdict, it patently suffers enormous prejudice. It has already set everything in motion, personnel, equipment machinery and materials. The respondent has not established any clue of what realistic prejudice it will suffer. In case respondent can approach the court on the return date if it manages to secure evidence against the entire project.

4.4. I am more convinced that the essentials of an interim order as completely enunciated in the *Choruma Blastings* case (*supra*) were fully met by the applicant. Respondent having becoming aware of the project mobilized people to go to the site and made it clear to applicant that there is a court order barring anyone from carrying out projects particularly engineered or at the behest of Redwing Mining Company and Mutasa Rural District Council. This was so in view of EMA granting to applicant a valid Environment Impact Assessment giving a greenlight to the applicant to commence the gigantic project at its own expense. Applicant approached the local offices of the Zimbabwe Republic Police who ironically stood by the respondent.

4.5. The application is properly before this court and applicant having been adjudged by this court to have satisfied the set requirements of an interdict is entitled to the relief sought as prayed for in the provisional order.